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REGIONAL WARS AND INSTABILITY:

CAUSES, CONSEQUENCES AND CHALLENGES TO INTERNATIONAL PEACE AND SECURITY

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ABSTRACT

Regional wars remain one of the most serious threats to international peace and security. Although the United Nations system was designed to prevent the use of force between states, armed conflicts continue to occur within and across regional boundaries. Such conflicts are rarely caused by a single factor. Territorial disputes, competition for power, weak institutions, identity-based mobilisation, external intervention, resource insecurity and the circulation of arms often combine to produce violence. Their effects also extend beyond the battlefield through displacement, food insecurity, disruption of trade, economic decline, human rights violations and the weakening of regional institutions. This paper examines the causes, consequences and legal dimensions of regional wars, with particular attention to South Asia, Europe, the Middle East and parts of Africa. It uses a doctrinal and qualitative method, supported by secondary literature and conflict data published by recognised institutions. The paper considers the United Nations Charter, international humanitarian law and important decisions of the International Court of Justice and international criminal tribunals. It argues that regional stability cannot be secured only through military deterrence or temporary ceasefires. Durable peace requires credible diplomacy, respect for international law, inclusive political settlements, accountable institutions, civilian protection and sustained post-conflict reconstruction. The paper also identifies gaps in the existing approach, particularly the distance between formal legal rules and their implementation in politically sensitive conflicts.

Keywords: regional war, armed conflict, international peace and security, regional stability, United Nations, international humanitarian law, displacement, conflict prevention.

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1. INTRODUCTION

War is often described as a failure of diplomacy, but regional wars are more than isolated military events. They reshape political relationships, weaken public institutions, interrupt economic activity and create humanitarian emergencies that may continue long after active fighting has stopped. A conflict that begins over a border, a change of government or a local political dispute can draw in neighbouring states, armed groups, international powers and regional organisations. In this way, violence within one state may become a regional security problem. The consequences are not limited to the countries directly involved: migration, food and energy prices, maritime routes, arms flows and diplomatic alignments can affect distant states as well.[1]

Recent conflict data shows why the subject deserves close attention. The Peace Research Institute Oslo, using Uppsala Conflict Data Program data, reported 65 state-based armed conflicts across 35 countries in 2025, the highest number in its series beginning in 1946. It also reported a sharp rise in interstate conflicts and a significant increase in one-sided violence against civilians, particularly in Sudan. These figures should be read with care because conflict datasets use defined categories and may be revised; nevertheless, they indicate that armed violence is neither rare nor confined to one region.[2]

The SIPRI Yearbook 2026 similarly records widespread violence during 2025. It identifies interstate conflicts involving, among others, Afghanistan and Pakistan, Cambodia and Thailand, India and Pakistan, Iran and Israel/United States, Russia and North Korea in relation to Ukraine, and the Democratic Republic of the Congo and Rwanda. The list demonstrates that contemporary regional instability may involve both traditional state-versus-state hostilities and

1U.N. Charter arts. 1(1), 2(3)–(4) (1945).
2Siri Aas Rustad, Conflict Trends: A Global Overview, 1946–2025, PRIO Paper (2026).

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conflicts in which domestic armed groups, external supporters and cross-border operations overlap. The number of conflicts alone does not explain their causes, but it gives a factual starting point for examining the security environment.[3]

Regional wars are shaped by history, geography and political choices. Unresolved borders may create recurring military crises. Competition for natural resources can increase pressure on already weak institutions. Political leaders may use nationalist language to strengthen domestic support, while armed groups may exploit social divisions or gaps in state authority. External powers can either reduce tensions through mediation or deepen them by supplying weapons, money and diplomatic protection to rival sides. These factors often reinforce one another, making conflicts difficult to end.

This paper approaches regional war as a legal, political and human security issue. It does not treat every regional tension as an armed conflict, nor does it assume that all conflicts have identical causes. Instead, it examines the ways in which local disputes become regional crises, how international law regulates the conduct of states and parties, and why existing institutions sometimes fail to prevent escalation. The discussion includes examples from South Asia, Europe, the Middle East and Africa, not to rank conflicts, but to identify recurring patterns and differences.

The central argument is that regional stability depends on more than the absence of open warfare. Stability also requires functioning institutions, public trust, respect for minority rights, predictable relations between neighbouring states and effective mechanisms for resolving disputes. A ceasefire may stop immediate violence, but unless the causes of conflict are addressed, it can merely pause the crisis.

3Stockholm International Peace Research Institute, Global Trends in Armed Conflict, in SIPRI Yearbook 2026 (2026).

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2. OBJECTIVES OF THE STUDY

1. To examine the major political, historical, economic, territorial and security-related causes of regional wars and instability.
2. To analyse the humanitarian, economic, social and diplomatic consequences of regional armed conflicts, including their effects on neighbouring states.
3. To study the international legal framework and the role of the United Nations and regional organisations in preventing conflict, protecting civilians and building lasting peace.

3. RESEARCH PROBLEM

Despite the existence of the United Nations Charter, international humanitarian law and regional peace mechanisms, armed conflicts continue to spread across borders and create prolonged instability. The main problem is not simply the absence of legal rules. It is the gap between accepted legal standards and their consistent implementation. Political interests, unequal power relations, veto politics, weak enforcement, limited institutional capacity and selective international attention can prevent timely action.

A second problem is that responses to regional wars often focus on immediate military developments while giving insufficient attention to the conditions that make violence likely to return. These conditions may include exclusion from political power, discrimination, weak justice systems, competition over land and resources, poverty, illicit arms markets and the absence of meaningful local participation in peace processes.

A third problem concerns the regional effects of conflicts. Neighbouring states may face refugee movements, cross-border armed activity, economic disruption and pressure to take sides. Yet regional institutions are often constrained by sovereignty concerns, political divisions and

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limited resources. The research therefore asks how law and institutions can move beyond crisis management towards prevention and durable peace.

4. RESEARCH QUESTIONS

4. What are the principal causes that transform local political or territorial disputes into regional wars and prolonged instability?
5. How do regional wars affect civilians, neighbouring states, regional economies and international peace and security?
6. To what extent do international law, the United Nations and regional organisations prevent escalation, protect civilians and support sustainable peace?

5. LITERATURE REVIEW

The literature on war and regional instability is broad and interdisciplinary. It includes international relations, security studies, political economy, peace research, international law and humanitarian studies. The following review focuses on works and institutional reports that help explain the causes of conflict, the spread of violence and the possibilities for peace.

5.1 Theories of conflict and international security

Kenneth Waltz's Man, the State, and War (1959) provides a foundational framework for understanding the causes of war through three levels of analysis: individuals, states and the international system. This approach remains useful because regional wars cannot be explained only by the decisions of individual leaders or only by the structure of the international system. Domestic political institutions, leadership calculations and the distribution of power between

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states may operate together. However, a state-centred framework may give less attention to non-state armed groups and the direct experiences of civilians.

Barry Buzan and Ole Wæver's Regional Security Complex Theory explains that security threats are often concentrated in geographical clusters. States located close to one another are more likely to affect each other's security because military threats, historical rivalries and political instability travel across borders more easily than across distant regions. Their approach is especially relevant to South Asia and the Middle East, where the security choices of one state can influence the calculations of its neighbours. The theory is useful for mapping regional relationships, although it does not by itself explain every local cause of violence.

Johan Galtung's work on violence and peace broadens the meaning of conflict beyond direct physical violence. His distinction between direct, structural and cultural violence helps explain why a society may remain unstable even when active fighting has stopped. Unequal access to resources, exclusion, discrimination and narratives that justify hostility may create conditions in which violence can return. This perspective supports the argument that peacebuilding must address social and institutional conditions as well as military hostilities.

5.2 Civil wars, political economy and internationalisation

Paul Collier and Anke Hoeffler's research on the economic causes of civil conflict draws attention to the role of financing, opportunity costs and access to valuable resources. Their work helped develop the debate about whether rebellion is driven by grievance, economic opportunity or a combination of both. The approach is valuable in examining conflicts involving oil, minerals, smuggling and control of trade routes. However, economic explanations should not be treated as complete explanations: political exclusion, identity, state repression and external intervention may be equally important.

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Mary Kaldor's New and Old Wars (1999; later editions) argues that many contemporary conflicts differ from conventional wars between disciplined national armies. They may involve state forces, militias, criminal networks, private actors and transnational support. Civilians can become direct targets, while identity-based mobilisation and informal war economies help sustain violence. This analysis is important for understanding why the line between war, organised crime and political violence may become blurred. It should not, however, be used to suggest that all modern wars are entirely new or that conventional interstate warfare has disappeared.

5.3 Institutional and empirical literature

The PRIO 2026 conflict-trends study provides an empirical overview of state-based conflict from 1946 to 2025 using UCDP data. Its finding of 65 active state-based conflicts in 2025, alongside an increase in interstate conflict and one-sided violence, is important because it challenges the assumption that the post-Cold War period has produced a steady decline in organised violence. It also shows why definitions and datasets matter: figures for state-based conflict do not necessarily capture every form of criminal violence, political unrest or communal violence.[4]

SIPRI's regional security analysis examines the interaction of great-power competition, arms build-ups, domestic instability, climate-related insecurity and regional flashpoints. It is particularly useful because it compares different regions rather than treating one conflict as a universal model. The report also links security trends to military expenditure and new

4Siri Aas Rustad, Conflict Trends: A Global Overview, 1946–2025, PRIO Paper (2026).

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technologies. Its institutional perspective provides reliable data, although policy reports must still be read critically and alongside independent scholarship.[5]

UNHCR's Global Trends 2024 report records 123.2 million forcibly displaced people at the end of 2024. It demonstrates that displacement is not a secondary effect of war: it is one of the largest and most lasting consequences of persecution, conflict, violence and serious disturbances of public order. The report gives a strong humanitarian basis for analysing the impact of regional wars on host communities, neighbouring states and international protection systems.[6]

The literature therefore offers several explanations but leaves room for further integrated research. Security theories explain regional interdependence; political-economy approaches explain how resources and financing may sustain armed groups; peace research highlights structural causes; and institutional reports measure conflict and displacement. This paper brings these approaches together with international legal analysis. Its focus is not to create a new statistical model, but to explain how causes, legal rules, humanitarian consequences and regional institutions interact.

6. RESEARCH METHODOLOGY

The study follows a qualitative and doctrinal research method. It relies on primary legal sources, including the United Nations Charter, the Geneva Conventions, the Rome Statute of the International Criminal Court and decisions of international courts and tribunals. Secondary sources include academic books, journal literature and reports published by recognised organisations such as SIPRI, PRIO, UCDP and UNHCR.

5Stockholm International Peace Research Institute, Regional Security and Conflict Dynamics, in SIPRI Yearbook 2026 (2026).
6U.N. High Commissioner for Refugees, Global Trends 2024 (2025).

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The research is descriptive and analytical. It describes the nature of regional wars and selected conflict patterns, then analyses the legal and institutional responses to them. The case studies are selected to illustrate different forms of regional instability: a prolonged interstate conflict in Europe, recurring security crises in South Asia, overlapping conflicts in the Middle East and cross-border insecurity in the Great Lakes region of Africa.

The paper does not claim to conduct field interviews or original statistical analysis. It uses published information available up to 11 November 2026, while clearly identifying the year to which each dataset relates. Conflict numbers are not directly interchangeable because organisations use different definitions, reporting periods and methods. The findings are therefore based on cautious comparison rather than treating all reported figures as identical.

7. MEANING AND NATURE OF REGIONAL WARS AND INSTABILITY

A regional war may be understood as sustained organised armed violence that affects two or more states in a geographical region, or a conflict within one state that has significant cross-border effects and draws neighbouring states or external actors into the security situation. This is a working definition for the present study, not a separate legal category under international law. The legal classification of a conflict depends on the parties involved, the intensity of violence, the organisation of armed groups and other factual circumstances.

The International Criminal Tribunal for the former Yugoslavia explained that an armed conflict exists whenever there is resort to armed force between states, or protracted armed violence between governmental authorities and organised armed groups or between such groups within a state. This formulation is widely used to explain the threshold for the application of

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international humanitarian law. It also makes clear that a conflict does not need to be formally declared as a war before the law of armed conflict can apply.[7]

Instability is broader than armed conflict. It may include repeated political crises, military coups, communal violence, terrorism, forced displacement, weak public institutions and the inability of a state to exercise effective authority across its territory. A country may experience instability without meeting the legal threshold of an armed conflict. Conversely, a ceasefire may end active hostilities while leaving political and social instability unresolved.

Regional instability is often contagious in the political and economic sense. A conflict may create refugee flows, encourage armed groups to use neighbouring territory, interrupt cross-border commerce or prompt neighbouring states to increase military readiness. These effects can create a security dilemma: one state's defensive measures may be interpreted by another as preparation for attack, leading to further military build-up and mistrust.

8. MAJOR CAUSES OF REGIONAL WARS

8.1 Territorial disputes and historical grievances

Territorial disputes remain a major source of interstate tension. Borders may be contested because of colonial-era arrangements, unclear maps, competing historical narratives, strategic geography or access to water and other resources. Mountain passes, river systems, maritime zones and border communities can have both practical and symbolic importance. When governments treat a territorial claim as a test of national identity or political legitimacy, compromise becomes difficult.

7Prosecutor v. Tadić, Case No. IT-94-1-AR72, Decision on the Defence Motion for Interlocutory Appeal on Jurisdiction, ¶ 70 (Int'l Crim. Trib. for the Former Yugoslavia Oct. 2, 1995).

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Historical grievances can also be used by political leaders to mobilise public opinion. Memories of past wars, displacement or perceived humiliation may become part of national narratives. Such narratives do not automatically cause war, but they can narrow the political space for negotiation and make military action appear more acceptable to domestic audiences.

8.2 Competition for regional power and external intervention

Regional wars may emerge from competition among states seeking influence, strategic depth, access to markets or control over important routes. Major powers may support local governments or armed groups to protect their interests or limit the influence of rivals. External support can alter the balance of power and encourage parties to continue fighting because they expect additional resources or diplomatic protection.

Intervention is not always harmful. Mediation, peacekeeping, humanitarian assistance and monitoring arrangements can reduce violence. The problem arises when external involvement becomes selective, encourages escalation or undermines local ownership of a political settlement. Regional stability requires that outside actors respect international law and avoid turning local disputes into proxy conflicts.

8.3 Weak institutions, exclusion and governance failures

Weak institutions increase the risk that political disputes will be resolved through violence. Where courts are not independent, elections are not trusted, security forces act without accountability or public services are distributed unfairly, groups may lose confidence in peaceful political processes. Exclusion based on ethnicity, religion, language, region or political identity can deepen grievances. Armed groups may then present themselves as protectors or alternatives to the state.

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Poor governance alone does not explain every conflict. Many states with institutional weaknesses do not experience war, and many conflicts involve strategic decisions by well-organised actors. Nevertheless, institutions that provide fair representation, public accountability and peaceful dispute resolution can reduce the likelihood that grievances turn into armed violence.

8.4 Resources, economic inequality and war economies

Competition over land, minerals, oil, gas, water and trade routes can contribute to conflict, particularly where resource revenues are concentrated in the hands of a small political or military elite. Armed actors may finance themselves through illegal extraction, smuggling, extortion or control of transport routes. Once a war economy develops, some actors may gain financially from continued instability and therefore resist peace.

Economic hardship can also increase the vulnerability of communities to recruitment by armed groups. Unemployment, food insecurity and the collapse of public services may weaken social resilience. Yet it would be inaccurate to claim that poverty directly causes war. Economic conditions interact with political exclusion, leadership decisions, institutional capacity and the availability of weapons.

8.5 Arms build-up, security dilemmas and new technologies

Military build-ups can be both a response to insecurity and a cause of further tension. When one state increases troops, missiles or military infrastructure, neighbouring states may respond with their own deployments. This security dilemma can produce an arms race even where neither side originally intended to start a war. Nuclear weapons add a further risk because a conventional crisis may escalate under the shadow of catastrophic retaliation.

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Technology has changed the speed and character of conflict. Drones, precision weapons, cyber operations, satellite systems and artificial-intelligence-assisted tools can improve military capabilities but also create new risks. These include mistaken targeting, rapid escalation, attacks on civilian infrastructure and uncertainty about human control over lethal decisions. Technology does not replace political causes of war; it changes the means by which violence is conducted.

9. REGIONAL CASE STUDIES

9.1 South Asia: India-Pakistan tensions and the wider regional setting

South Asia illustrates how territorial disputes, historical memory, national security concerns and nuclear deterrence can combine to create a high-risk regional environment. India and Pakistan have fought multiple wars and experienced repeated crises since partition in 1947. The dispute over Jammu and Kashmir remains a central source of tension, alongside concerns about cross-border terrorism, military deployments, water and wider regional influence.

The military crisis of May 2025 showed how quickly a serious incident can lead to escalation between two nuclear-armed neighbours. The United Nations Secretary-General welcomed the announcement that hostilities had ended and called for the ceasefire to contribute to lasting peace and the addressing of longstanding issues. The statement is evidence of the international concern generated by the crisis; it should not be treated as proof that the underlying dispute was resolved.[8]

The South Asian example demonstrates the importance of reliable crisis communication, military-to-military channels, restraint in public statements and sustained diplomatic engagement. A ceasefire can reduce immediate danger, but it cannot by itself settle territorial

8U.N. Secretary-General, UN Chief Welcomes India-Pakistan Ceasefire (May 15, 2025).

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claims, address security concerns or build public trust. Regional cooperation is also affected by wider political relationships, including the role of China, Afghanistan and other neighbouring states.

9.2 Europe: Russia-Ukraine war and wider security effects

The Russia-Ukraine war has had consequences far beyond the two states. It has affected European security planning, military expenditure, energy markets, food supply chains, sanctions policy and relations between Russia and Western states. It has also revived concerns about the prohibition on acquiring territory by force and the limits of collective security when a permanent member of the Security Council is directly involved in a conflict.

The war demonstrates that regional conflicts can reshape the wider international order. States in Europe have increased defence spending and reassessed military readiness. The conflict has also generated large-scale displacement and extensive damage to civilian infrastructure. Its continuation illustrates the limits of diplomacy where the parties' territorial and security demands remain incompatible and where external support sustains the capacity to fight.

9.3 Middle East: interconnected conflicts and regional spillover

The Middle East contains several overlapping conflict systems involving state actors, non-state armed groups, occupation, unresolved questions of statehood, sectarian mobilisation, competition for regional influence and external intervention. Conflicts in and around Israel and Palestine, Syria, Yemen, Iraq and the wider Gulf have affected regional security, civilian protection, maritime routes and international diplomacy.

The region shows why conflicts should not be analysed as isolated events. Violence in one theatre may affect armed groups and political calculations elsewhere. Displacement,

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restrictions on humanitarian access, attacks on civilian infrastructure and damage to essential services can create long-term instability. The legal analysis must remain case-specific: the applicable rules depend on whether the situation is an international armed conflict, a non-international armed conflict, occupation or another legal context.

9.4 Africa: Great Lakes region and Sudan

In parts of Africa, regional instability is linked to weak state control, competition over natural resources, cross-border armed groups, forced displacement and external involvement. The Great Lakes region illustrates how insecurity in one state may be connected to armed activity and political tensions in neighbouring states. The Democratic Republic of the Congo has experienced prolonged conflict involving domestic armed groups and allegations of external involvement. The situation requires attention to state responsibility, sovereignty, protection of civilians and regional diplomacy.

Sudan demonstrates the severe humanitarian consequences of internal armed conflict and the risks of regional spillover. Displacement, food insecurity, damage to health services and violence against civilians can destabilise neighbouring countries and create pressure on already limited humanitarian systems. These cases show that regional peace cannot be secured only through agreements among national governments; local communities, displaced persons and civil society must also be included in peacebuilding.

10. CONSEQUENCES OF REGIONAL WARS

10.1 Humanitarian consequences and displacement

The most immediate cost of war is borne by civilians. Death, injury, family separation, loss of homes, destruction of hospitals and schools, sexual violence and restricted access to food

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and medicine can affect entire generations. Displacement may occur within national borders or across them. Refugees and internally displaced persons may face insecurity, exploitation, lack of education and barriers to employment. Host communities may also experience pressure on housing, health care, water and public services.

UNHCR estimated that 123.2 million people were forcibly displaced worldwide at the end of 2024 because of persecution, conflict, violence, human rights violations and events seriously disturbing public order. This figure includes different categories of displaced people and should not be described as a count of war refugees alone. It nevertheless demonstrates the scale of global forced displacement and the long-term importance of protection and durable solutions.[9]

10.2 Economic and developmental consequences

War damages roads, bridges, ports, power systems, factories, farms and communication networks. Governments redirect public funds from education, health and development towards military expenditure and emergency security. Investors may withdraw, insurance costs may rise and trade routes may become unsafe. Neighbouring states can suffer from reduced trade, refugee-hosting costs and uncertainty in regional markets.

The economic consequences may continue after a ceasefire. Destroyed infrastructure requires reconstruction, while public debt, unemployment and loss of skilled workers can slow recovery. When war economies become entrenched, illicit markets may undermine lawful economic activity. Reconstruction must therefore include transparent procurement, anti-corruption safeguards and opportunities for local businesses and workers.

9U.N. High Commissioner for Refugees, Global Trends 2024, at 2–4 (2025).

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10.3 Political and institutional consequences

Prolonged conflict can weaken constitutional government, the rule of law and public trust. Emergency powers may become permanent, security forces may gain excessive influence and opposition voices may be restricted in the name of national security. In conflict-affected areas, courts and public administration may stop functioning. These conditions can make post-war political settlements fragile.

10.4 Social and environmental consequences

War can deepen social divisions and create cycles of revenge. Children may lose access to education, families may be separated and survivors may experience trauma for years. Explosive remnants of war, damaged water systems, industrial pollution and destruction of agricultural land can create environmental harm. Climate-related stress may then interact with displacement and weak governance, increasing pressure on already vulnerable communities.

10.5 International and regional security consequences

Regional wars can increase military expenditure, encourage arms transfers and weaken cooperation between states. They may disrupt maritime trade, energy supplies and international transport. They can also create opportunities for terrorist organisations, trafficking networks and other armed actors to operate across borders. These consequences show why conflict prevention is not only a humanitarian duty but also a practical interest of every state in the region.

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11. INTERNATIONAL LEGAL FRAMEWORK

11.1 United Nations Charter and the prohibition on the use of force

The United Nations Charter establishes the central legal framework for the maintenance of international peace and security. Article 2(3) requires states to settle international disputes by peaceful means, while Article 2(4) prohibits the threat or use of force against the territorial integrity or political independence of any state, or in any other manner inconsistent with the purposes of the United Nations. The rule is a foundation of the modern international legal order.[10]

The Charter recognises a limited right of individual or collective self-defence under Article 51 if an armed attack occurs, until the Security Council has taken measures necessary to maintain international peace and security. States exercising this right must report the measures to the Security Council. Self-defence is not an unlimited permission to use force. Its exercise is subject to requirements developed in customary international law, including necessity and proportionality.[11]

11.2 Peaceful settlement of disputes

Chapter VI of the Charter encourages negotiation, enquiry, mediation, conciliation, arbitration, judicial settlement and resort to regional arrangements. Article 33 requires parties to a dispute likely to endanger international peace and security to seek a solution through peaceful means. This framework is important because many regional wars begin as disputes that could, in

10U.N. Charter art. 2(4) (1945).
11U.N. Charter art. 51 (1945).

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principle, be addressed before the use of force. Early diplomatic engagement can reduce miscalculation and create space for compromise.[12]

11.3 International humanitarian law

International humanitarian law regulates the conduct of parties during armed conflict. The four Geneva Conventions of 1949 and their Additional Protocols establish protections for persons who are not, or are no longer, taking part in hostilities. Common Article 3 provides minimum protections in non-international armed conflicts, including humane treatment and prohibitions on murder, torture, cruel treatment, hostage-taking and sentences or executions without proper judicial guarantees. The rules apply regardless of which party is considered politically responsible for the conflict.[13]

The principles of distinction, proportionality and precautions in attack are central to civilian protection. Parties must distinguish between civilians and combatants and between civilian objects and military objectives. Attacks directed at civilians are prohibited. Even where a target is a military objective, an attack is prohibited if the expected incidental civilian harm would be excessive in relation to the concrete and direct military advantage anticipated. Parties must also take feasible precautions to minimise civilian harm. These rules are not optional policy preferences; they are legal obligations.[14]

11.4 International criminal law and accountability

The Rome Statute gives the International Criminal Court jurisdiction over genocide, crimes against humanity, war crimes and the crime of aggression, subject to the Statute's

12U.N. Charter arts. 33–38 (1945).
13Geneva Convention Relative to the Protection of Civilian Persons in Time of War art. 3, Aug. 12, 1949, 75 U.N.T.S. 287.
14Protocol Additional to the Geneva Conventions of 12 August 1949, and Relating to the Protection of Victims of International Armed Conflicts arts. 48, 51, 52, June 8, 1977, 1125 U.N.T.S. 3.

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jurisdictional and admissibility requirements. Article 8 defines war crimes, including serious violations of the laws and customs applicable in international and non-international armed conflict. The Court is complementary to national criminal jurisdictions, meaning that it is not intended to replace genuine national investigations and prosecutions.[15]

Accountability can deter future violations, recognise victims and strengthen the rule of law. However, international criminal justice has limits. The Court depends on state cooperation, has jurisdictional boundaries and cannot prosecute every alleged violation in every conflict. National courts, universal jurisdiction where available, fact-finding mechanisms and reparations processes may therefore also play important roles.

11.5 Important judicial decisions

In Military and Paramilitary Activities in and Against Nicaragua, the International Court of Justice considered the prohibition on the use of force and the principle of non-intervention. The Court rejected the United States' collective self-defence justification on the facts before it and found violations of customary international law. The judgment is important because it confirms that states cannot avoid legal responsibility simply by acting indirectly through support for armed groups. It also clarifies the relationship between the use of force and intervention in another state's affairs.[16]

In Oil Platforms, the Court examined a self-defence claim and considered whether the measures taken were necessary and proportionate in response to the alleged armed attacks. The case is relevant to regional crises because states often rely on security arguments when using

15Rome Statute of the International Criminal Court arts. 5, 8, 17 (1998).
16Military and Paramilitary Activities in and Against Nicaragua (Nicar. v. U.S.), Merits, 1986 I.C.J. 14, ¶¶ 191, 202–05 (June 27).

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force. It shows that a claim of self-defence must be assessed against evidence and legal requirements rather than accepted only because a state describes its action as defensive.[17]

In Armed Activities on the Territory of the Congo, the Court found that Uganda's military intervention in the Democratic Republic of the Congo, beyond the limited area where consent existed, was not justified by self-defence. The Court also addressed violations of international humanitarian law and human rights and the responsibility of Uganda for acts committed by its forces. The judgment is especially relevant to regional wars because it deals with foreign military presence, sovereignty, occupation and the obligations of an intervening state.[18]

The Tadić decision is important for the classification of armed conflicts. Its definition recognises that international humanitarian law can apply to protracted violence involving organised armed groups within a state, not only to wars between states. This is essential in regional settings where domestic conflicts may involve cross-border support or multiple armed actors.[19]

12. ROLE AND LIMITATIONS OF INTERNATIONAL AND REGIONAL ORGANISATIONS

12.1 United Nations

The United Nations can contribute to conflict prevention through diplomacy, mediation, fact-finding, sanctions, peacekeeping, humanitarian coordination and post-conflict assistance. The Security Council has primary responsibility for the maintenance of international peace and security. Under Chapter VII, it may determine the existence of a threat to the peace, breach of the

17Oil Platforms (Iran v. U.S.), Judgment, 2003 I.C.J. 161, ¶¶ 43, 73–77 (Nov. 6).
18Armed Activities on the Territory of the Congo (Dem. Rep. Congo v. Uganda), Judgment, 2005 I.C.J. 168, ¶¶ 146–65, 345 (Dec. 19).
19Prosecutor v. Tadić, Case No. IT-94-1-AR72, Decision on the Defence Motion for Interlocutory Appeal on Jurisdiction, ¶ 70 (Int'l Crim. Trib. for the Former Yugoslavia Oct. 2, 1995).

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peace or act of aggression and decide on measures, including non-military measures and, where necessary, military action.

The United Nations also supports peacebuilding through election assistance, institution-building, disarmament, demobilisation and reintegration programmes, human rights monitoring and support for the rule of law. Peacekeeping missions can help protect civilians and monitor ceasefires when they have a clear mandate, adequate resources and the cooperation of relevant parties.

The organisation nevertheless faces important limits. The veto power of the five permanent members can prevent collective action where their interests differ. Peace operations may lack sufficient personnel or resources, and peace agreements may be signed without genuine commitment from armed actors. The UN cannot impose a stable political settlement where local parties and influential external actors are unwilling to cooperate.

12.2 Regional organisations

Regional organisations can respond more quickly to local developments because they may have closer political knowledge and established relationships. The African Union, European Union, Association of Southeast Asian Nations, Organization of American States and other regional bodies have different mandates and capacities. They can provide mediation, election observation, monitoring, sanctions, peace operations and platforms for dialogue.

Article 52 of the UN Charter recognises the role of regional arrangements in dealing with matters relating to the maintenance of international peace and security, provided their activities are consistent with the purposes and principles of the United Nations. Under Article 53, enforcement action by regional arrangements generally requires Security Council authorisation. Regional action should therefore complement, not replace, the collective security system.

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12.3 Civil society and local peacebuilding

Civil society organisations, women's groups, community leaders, journalists, universities and humanitarian organisations can help identify early warning signs, build trust and support local dialogue. They may have access to communities that national governments or international missions cannot easily reach. Peace agreements are more likely to be accepted when affected communities have a meaningful voice in their design and implementation.

Women's participation is particularly important. Security Council Resolution 1325 recognises the need for women's participation in conflict prevention, peace negotiations, peacebuilding and post-conflict reconstruction. Women and girls are affected by conflict in distinct ways, including sexual and gender-based violence, displacement and loss of livelihoods, but they are also peace actors whose knowledge and leadership should shape solutions.

13. FINDINGS AND RESEARCH GAPS

13.1 Major findings

- Regional wars usually result from several connected causes. Territorial disputes, weak governance, resource competition, historical grievances and external intervention can reinforce one another.
- Conflict is increasingly interconnected. Domestic armed violence may produce cross-border displacement, arms flows, political pressure and regional military escalation.
- The civilian impact of war is long-lasting. Displacement, damaged infrastructure, interrupted education and weakened health systems continue after active fighting has declined.

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- International law provides clear rules on the use of force, peaceful settlement and civilian protection, but implementation depends heavily on political will, evidence, state cooperation and institutional capacity.
- Ceasefires and military deterrence are necessary in some situations but are not sufficient for durable peace. Political inclusion, justice, reconstruction and local participation are also required.

13.2 Research gaps

First, many studies examine conflicts through separate disciplinary lenses. Security studies may focus on military power, while humanitarian research focuses on displacement and legal studies focus on rules and responsibility. More integrated work is needed to show how these dimensions influence one another.

Second, there is a gap between the existence of legal rules and their enforcement in politically sensitive conflicts. Further research should examine how evidence is collected, how accountability mechanisms can operate where states refuse cooperation and how legal institutions can remain independent of political pressure.

Third, regional organisations are often assessed through formal mandates rather than their practical ability to prevent escalation. Comparative research should examine which forms of mediation, monitoring and early-warning arrangements have produced measurable improvements, and under what conditions.

Fourth, the experiences of local communities, displaced persons, women, children and minority groups are not always sufficiently represented in high-level security analysis. Research should assess whether peace agreements address their needs and whether post-conflict institutions provide accessible remedies.

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Finally, new technologies require more sustained legal and policy research. The use of drones, cyber operations and AI-assisted targeting raises questions about accountability, human control, evidence, civilian harm and the application of existing international humanitarian law.

14. SUGGESTIONS AND RECOMMENDATIONS

7. Strengthen preventive diplomacy: neighbouring states and regional organisations should maintain regular dialogue, crisis hotlines, border communication mechanisms and agreed procedures for investigating incidents.
8. Promote peaceful settlement: states should make practical use of negotiation, mediation, arbitration and judicial settlement under the UN Charter before disputes escalate into armed confrontation.
9. Ensure compliance with international humanitarian law: all parties must protect civilians, allow impartial humanitarian relief, avoid indiscriminate attacks and investigate credible allegations of serious violations.
10. Improve accountability: domestic courts should be strengthened, evidence should be preserved, and international accountability mechanisms should be supported within their legal mandates.
11. Address structural causes: peace processes should consider political exclusion, discrimination, weak public services, corruption, resource disputes and unequal access to economic opportunities.
12. Control illicit arms flows: states should improve border cooperation, transparency in arms transfers and monitoring of weapons diversion, while respecting applicable international obligations.

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13. Include local communities: women, youth, displaced persons, minorities and civil society groups should participate meaningfully in peace negotiations and reconstruction planning.
14. Invest in post-conflict recovery: reconstruction should prioritise housing, schools, hospitals, livelihoods, justice institutions and safe return or integration of displaced persons.
15. Use technology responsibly: states should maintain meaningful human oversight in weapons systems, assess civilian risks and strengthen cooperation on cyber incidents affecting critical infrastructure.
16. Improve regional cooperation: regional bodies should coordinate early-warning systems, humanitarian responses, mediation support and cross-border development projects, while acting consistently with the UN Charter.

15. CONCLUSION

Regional wars and instability remain serious challenges to international peace and security. The evidence reviewed in this paper shows that armed conflict is not limited to traditional wars between states. It also includes prolonged violence involving governments and organised armed groups, conflicts shaped by external support and crises whose consequences cross national borders. The causes are varied, but they often include unresolved territorial claims, competition for power, weak institutions, political exclusion, resource pressures, arms build-ups and historical grievances.

The consequences reach far beyond the battlefield. Civilians face death, injury, displacement and the loss of basic services. Neighbouring states experience economic pressure, refugee movements and security risks. Regional institutions may become divided, while international cooperation becomes more difficult. The scale of forced displacement reported by

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UNHCR and the conflict trends recorded by PRIO and SIPRI underline the continuing human and political cost of organised violence.

International law provides an essential framework. The UN Charter prohibits the unlawful use of force and requires peaceful settlement of disputes. International humanitarian law protects persons affected by armed conflict, while international criminal law provides mechanisms for individual accountability in cases within its jurisdiction. Decisions of the International Court of Justice and international criminal tribunals clarify that states and individuals may incur responsibility for unlawful conduct. Yet legal rules cannot achieve their purpose without implementation, cooperation and political commitment.

The central conclusion is that lasting regional stability requires a comprehensive approach. Military restraint and deterrence may prevent immediate escalation, but they must be accompanied by diplomacy, inclusive political settlements, protection of civilians, accountability, economic recovery and meaningful participation by affected communities. Regional organisations should strengthen early warning and mediation, while the United Nations should use its legal and institutional tools consistently. Peace is not merely the absence of active fighting; it is a condition in which disputes can be resolved peacefully, rights are protected and institutions are trusted. The prevention of regional wars therefore requires sustained work before, during and after conflict.

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